

SENATE No. 2640

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, October 9, 2025.

The committee on Senate Ways and Means to whom was referred the Senate Bill to increase access to disposable menstrual products (Senate, No. 2546), - reports, recommending that the same ought to pass with an amendment substituting a new draft with the same title (Senate, No. 2640).

For the committee,
Michael J. Rodrigues

SENATE No. 2640

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**In the One Hundred and Ninety-Fourth General Court
(2025-2026)**

An Act to increase access to disposable menstrual products.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 23B of the General Laws is hereby amended by adding the
2 following section:-

3 Section 37. (a) For the purposes of this section, “disposable menstrual products” shall
4 mean products used to collect menstruation and vaginal discharge including, but not limited to,
5 sanitary napkins, tampons and underwear liners.

6 (b) Providers of family shelters pursuant to section 30 and similar shelter programs for
7 homeless individuals that receive funding through appropriations by the general court shall make
8 disposable menstrual products available at no cost to menstruating individuals in such shelters.
9 The disposable menstrual products shall be made available in readily accessible locations and in
10 a manner that minimizes any stigmatization of an individual seeking such products.

11 SECTION 2. Chapter 40 of the General Laws is hereby amended by inserting after
12 section 36C the following section:-

Section 36D. (a) For the purposes of this section, “disposable menstrual products” shall mean products used to collect menstruation and vaginal discharge including, but not limited to, sanitary napkins, tampons and underwear liners.

(b) Notwithstanding section 27C of chapter 29 of the General Laws, the keeper of a lockup facility within a city or town or under the jurisdiction of the state police, state lockup facility shall make disposable menstrual products available at no cost to menstruating individuals at such facilities. The disposable menstrual products shall be available in readily accessible locations and in a manner that minimizes any stigmatization of an individual seeking such products.

SECTION 3. Chapter 71 of the General Laws is hereby amended by inserting after section 3 the following section:-

Section 3A. (a) For the purposes of this section, “disposable menstrual products” shall mean products used to collect menstruation and vaginal discharge including, but not limited to, sanitary napkins, tampons and underwear liners.

(b) Notwithstanding section 27C of chapter 29 of the General Laws, every public elementary and secondary school shall make disposable menstrual products available to menstruating students at no cost. The disposable menstrual products shall be readily available and in a manner that minimizes any stigmatization of an individual seeking such products.

SECTION 4. Chapter 125 of the General Laws is hereby amended by adding the following section:-

Section 22. (a) For the purposes of this section, “disposable menstrual products” shall mean products used to collect menstruation and vaginal discharge including, but not limited to, sanitary napkins, tampons and underwear liners.

(b) The superintendent of a correctional facility shall make disposable menstrual products available at no cost to menstruating individuals at such facilities. The disposable menstrual products shall be available in readily accessible locations and in a manner that minimizes any stigmatization of an individual seeking such products.

SECTION 5. Chapter 126 of the General Laws is hereby amended by adding the following section:-

Section 41. (a) For the purposes of this section, “disposable menstrual products” shall mean products used to collect menstruation and vaginal discharge including, but not limited to, sanitary napkins, tampons and underwear liners.

(b) A sheriff shall make disposable menstrual products available at no cost to menstruating individuals at houses of correction, county jails and regional lockup facilities for whom such sheriff has custody or maintains control. The disposable menstrual products shall be available in readily accessible locations and in a manner that minimizes any stigmatization of an individual seeking such products.